

24STCV23755 24STCV23755

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-09-10

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Case Number: 24STCV23755 Hearing Date: September 10, 2026 Dept: 415

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING

DATE: September 9, 2026 TRIAL

DATE: Vacated

CASE: Nichols v. American Honda Motor Co.,
Inc., et al.

CASE

NO.: 24STCV23755

MOTION FOR

ATTORNEYS' FEES

MOVING PARTY/PARTIES: Plaintiff China Nichols

RESPONDING PARTY/PARTIES: Defendant American
Honda Motor Co., Inc.

PROOF OF SERVICE:

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Defendant opposes the motion on the
merits, and thereby waived any procedural objections. (See In re Marriage of Falcone (2008)
164 Cal.App.4th 814, 826.)

CASE HISTORY:

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September 13, 2024: Complaint filed.

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December 23, 2024: First amended
complaint filed.

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April 4, 2025: Second amended
complaint filed.

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August 5, 2025: Notice of settlement
of entire case filed.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff China Nichols

("Plaintiff") settled her claims against Defendant American Honda Motor Co.,
Inc. ("Defendant"). Now, Plaintiff moves
to recover attorneys' fees. Defendant
opposes the motion.

TENTATIVE RULING:

Plaintiff's
motion for attorneys' fees is DENIED.

Moving
party to give notice.

DISCUSSION:

Request
for judicial notice

Plaintiff's request for judicial notice is denied. The rulings of other trial courts in other cases are irrelevant to this Court's ruling on this motion for attorneys' fees. "[A] written trial court ruling has no precedential value" (Santa Ana Hospital Medical Center v. Belshe (1997) 56 Cal.App.4th 819, 831.)

Attorneys' fees

The prevailing party must seek an award of attorneys' fees via a noticed motion, and bears the burden of proof to justify the amount sought. (See Code Civ. Proc., § 1033.5, subd. (c)(5)(A).)

Defendant argues that the motion is untimely under California Rules of Court, rule 3.1702. A party seeking attorneys' fees must file and serve its motion within the time for filing a notice of appeal. (Cal. Rules of Court, rule 3.1702, subd. (b)(1); see also rules 8.104, 8.108.) As such, the normal time limit for filing a motion for attorneys' fees is 60 days after the clerk or any party serves notice of entry of judgment, or 180 days after the date of entry or judgment, whichever is the earliest. (Cal. Rules of Court, rule 8.104, subd. (a).) Here, the parties stipulated to dismissal with prejudice per the settlement. The Court entered the dismissal on December 3, 2025. The Court's clerk gave notice of the dismissal by email on December 5, 2025. For purposes of this rule, a voluntary dismissal is a judgment. As such, the time limit for an attorneys' fees motion is 60 days after notice of entry of dismissal. (Sanabria v. Embrey (2001) 92 Cal.App.4th 422, 429.) Accordingly, Plaintiff had until February 5, 2026 to file this motion for attorneys' fees. Plaintiff filed this motion on March 24, 2026. Accordingly, the motion is denied as untimely.

Costs

If Plaintiff seeks to recover costs, Plaintiff must proceed via a memorandum of costs. (See Cal. Rules of Court, rule 3.1700, subd. (a).)

Accordingly,

Plaintiffs' motion for attorneys' fees is DENIED.

Moving
party to give notice.

IT
IS SO ORDERED.

Dated: September 9, 2026 _____

Rolf
M. Treu

Judge
of the Superior Court

Any party may submit on the tentative ruling by
contacting the courtroom via email at SMCDept415@lacourt.ca.gov by no later
than 4:00 p.m. the day before the hearing. All interested parties
must be copied on the email. It should be noted that if you submit
on a tentative ruling the court will still conduct a hearing if any party
appears. By submitting on the tentative you have, in essence, waived your right
to be present at the hearing, and you should be aware that the court may not
adopt the tentative, and may issue an order which modifies the tentative ruling
in whole or in part.